PEOPLE'S WITNESS: The shape and sanctity of court and chair

JUSTICE U.U. LALIT *Former Chief Justice of India*

CLEARING THE TABLE



Justice U.U. Lalit served as the Chief Justice of India for a 74 days, but his brief tenure was marked by some remarkable achievements. Over 16,000 cases were listed in this time, with almost 4,000 cleared in the first 12 days. The tenure also saw bail being granted in a number of long-duration internment cases, including for journalist Siddique Kappan and Naxal poet Varavara Rao. At the India Today Conclave, Justice Lalit talked of how he disposed of long-pending critical cases, the reconstitution of benches, which reduced the load on individual judges, and also touched on matters weighing heavily on the public conscience such as the independence of the judiciary, judges taking up post-retirement sinecures and his own decision to teach constitutional law post- superannuation. Justice Lalit also spoke about the most challenging cases he has handled, his relationship with politicians he defended as a lawyer and why he took up judgeship after over three decades of a well-paying legal practice. ■

KEY TAKEAWAYS

- Many of the statutory provisions make it difficult for judges to grant bail
- The judiciary is in no way under pressure from the executive
- Political clients were handled professionally when he was a lawyer. It did not have any bearing on one's work as a judge
- The collegium system is the best system for selection of judges

> The validity of the legislation such as PMLA will have to be challenged. It's a parliamentary legislation.... Unless and until this law is validly challenged, the court has to proceed with what is laid down in the law while considering bail applications

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The courts are completely independent. It is very difficult for judges...and easy for somebody from outside to criticise that the judiciary has become an 'executive court'